

Comment ID: COLC-2023-0006-7153

First, Copyright Law should unequivocally protect the rights of copyright owners from having their works used without their knowledge or permission. Second, Human Authorship is a foundational principle of Copyright.

Generative AI has the potential to negate "...the progress of science and useful arts..." by having a chilling effect on new content creation. As an educator, this is glaringly obvious with students who, rather than create original work, rely on Generative tools that, at best, remix existing content. AI is simulating creativity and progress but is truly only derivative.

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"Generative AI" is already infringing on copyright at a massive scale - the companies who run these generators admit to simply scraping the internet for images and text that are already under copyright, and I do not believe using them as a training database qualifies under transformative use. Furthermore, companies are using the output of these models to evade paying for the works of artists and writers. I believe the output of generative AI should not be copyrightable; the submission of prompts to a generator is not the same as performing the labor of actually drawing, writing, or illustrating.

Comment ID: COLC-2023-0006-9259

Copyright must remain limited to human-generated work. The spirit of copyright is to protect HUMAN creation -- ideas, literature, and artworks conceived by human minds. Not only would extending copyright to AI generated work devastate industries, it would undermine the very spirit of copyright. Copyright has allowed American writers and artists to boldly create. It cheapens their work to assign the same legal status to machine outputs -- outputs that were created by scraping copyrighted work without consent anyway.

Comment ID: COLC-2023-0006-2098

Thank you for opening public comment on this important issue. As a passionate reader and sometime writer myself, this is an issue I care about deeply. The copyright policy of this country has always been that artists retain exclusive rights to their works for a determined period, as laid out in the Constitution itself. I believe that allowing generative AI to train on copyrighted works would be violation of this principle unless done with the author's express permission, as "exclusive" excludes all, not just human beings. The Copyright Office should adopt this position and include the use of copyrighted works to train generative AI without consent under the definition of copyright infringement to protect the right of authors to control their work.

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Generative AI technology is often illegally trained on copyrighted materials without the consent of the copyright holder. While it certainly could offer benefits to augment the work of human creators, works wholly generated via AI are merely algorithmic remixes of actual works. They will flood the marketplace, devalue human-created art forms, and jeopardize the livelihoods of artists. In turn, future generations of would-be artists and creators will be disincentivized to pursue the arts due to the signal to noise ratio caused by regurgitated content resulting from the under-regulated generative AI technologies.

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All current forms of generative AI have been trained extensively and primarily on copyrighted source material. AI-generated content is inherent copyright infringement. Not only should it be ineligible for copyright protection, but greater regulations need to be put in place to protect existing copyrighted material from being scraped by AI. Consent for a person's writing, art, appearance, etc. to be used as a source for generative AI should ALWAYS be opt-in and NEVER a requirement for using an online service or website.

Comment ID: COLC-2023-0006-2257

The advent of generative AI, much like any new tool, has empowered a new wave of creative individuals who may not have previously found success or possessed the same abilities in other mediums. With easier access to increased output, people can choose to pivot their creative efforts or maintain the belief that doing things the harder way is inherently more meaningful. As someone who has had to adapt my own creative process and train a model on my own content as part of a new workflow, I am firm in my belief that copyright protection should still be applicable to hybrid works. I view generative AI as a new tool rather than mere copying.

Comment ID: COLC-2023-0006-4419

I ask you to please continue your policy that AI generated content cannot be copyrighted, as it presents a threat to all creators to completely remove any human creators from the artistic process. Likewise, please treat unauthorized use of a creator's work in AI datasets as copyright infringement. If a human makes a certain amount of changes to a creative work, it is being done with intention to create a specific effect. When an AI does it, it is done specifically to replace the creative ability of the original creator. It is a clear and present danger to creators and creativity, and must not just be treated like it's just another artistic tool.

Comment ID: COLC-2023-0006-9243

Generative AI is a plague on the copyright and intellectual property system. With no human input the output cannot legally or morally belong to anyone, and the use needs to be regulated as to not harm the working class artists, writers, and all creative discipline.

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As the source material for generative AI has been, in most cases, obtained without the permission of the copyright owner, it is by its very nature a violation. Giving copyright protection to creators who use it and call the results their own, when it is nothing of the sort, is a slap in the face to the original artists and authors. It's nothing more than plagiarism dressed up in a fancy package, and it is theft of intellectual property.